

1.	23CV1510	WEXELMAN vs. J.S WEST MILLING COMPANY
PAGA Settlement		

Pursuant to Labor Code § 2699(l)(2), Plaintiffs request the Court’s approval of the Parties’ PAGA Settlement Agreement, Amendment to PAGA Settlement Agreement, and Second Amendment to PAGA Settlement Agreement (“Settlement” or “Settlement Agreement”) between Plaintiffs and Defendant J.S. West Milling Company (“Defendant”) to resolve claims brought under the Private Attorneys General Act of 2004, Labor Code § 2698, et seq. (“PAGA”) seeking civil penalties for various violations of the California Labor Code and Industrial Wage Commission’s Wage Orders. Pursuant to the Settlement, Defendant will pay a gross settlement amount of \$355,000.00 (“Gross Settlement Amount” or “GSA”).

“Aggrieved Employees” included in the Settlement are defined as: “all individuals who were employed by Defendant, as hourly, non-exempt employees in California at any time during the PAGA Period, from September 5, 2022, through March 10, 2025.”

Pending Court approval, the Gross Settlement Amount will be allocated as follows:

- (1) Attorneys’ fees in the amount of one-third of the Gross Settlement Amount, which is \$118,333.33 (“PAGA Counsel Fees Award”);
- (2) Actual litigation costs incurred in this matter in the amount of \$27,565.93 (“PAGA Counsel Costs Award”); and
- (3) Settlement administration costs of up to \$6,500.00 to be paid to the Administrator, Phoenix Class Action Administration Solutions (“Phoenix”), for sending notices and for calculating settlement shares, preparing all checks and mailings, and preparing the necessary tax return and reporting documents. (“Administration Expenses Payment”).
- (4) The remaining settlement amount of \$202,600.74 (“Net Settlement Amount”) shall be allocated between the Labor and Workforce Development Agency (“LWDA”) and the Aggrieved Employees pursuant to Labor Code section 2699(i), with 75% (\$151,950.56) allocated to the Labor and Workforce Development Agency (“LWDA PAGA Payment”) and 25% (\$50,650.18) allocated to the Aggrieved Employees on a pro-rata basis (“Individual PAGA Payment”).

The Individual PAGA Payments will be calculated according to the number of PAGA Pay Periods the Aggrieved Employee worked for Defendant in California during the PAGA Period. Defendant estimates there are approximately 478 Aggrieved Employees who worked a total of approximately 17,438 PAGA Periods through March 2025. If the total number of PAGA Pay Periods encompassed within the PAGA Period exceeds 17,438 by more than 10% (i.e., if the total

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PAGA Pay Periods exceeds 19,182 pay periods), then the Gross Settlement Amount shall be increased in proportion to the percentage increase in the number of PAGA Pay Periods encompassed in the PAGA Period in excess of 10% (e.g., if there was a 12% increase in PAGA Pay Periods, then Defendant would agree to increase the Gross Settlement Amount by 2%), or the Defendant can instead opt to end the PAGA period as of the date that the PAGA pay periods reached 19,182.

PAGA Counsel is requesting a PAGA Counsel Fees Award in the amount of \$118,333.33 and a PAGA Counsel Costs Award of \$27,565.93 for litigation costs incurred, which is less than the allocated amount of \$32,000.00 in the Settlement Agreement.

According to the Motion and supporting Declarations, PAGA Counsel worked at least 202.2 hours on this matter and calculated the base lodestar at \$152,164.00 at rates reflecting those currently earned in the marketplace, which is more than the \$118,333.33 in attorneys' fees PAGA Counsel are requesting.

The Parties agreed to use Phoenix as the third-party settlement administrator in this case. Phoenix will be responsible for updating Aggrieved Employees' addresses, mailing the settlement payment letter, and calculating and distributing the settlement checks, among other duties. Phoenix capped its fees at \$6,500.00 for administering the Settlement.

TENTATIVE RULING #1: APPEARANCES ARE REQUIRED AT 8:30 A.M. ON FRIDAY, MARCH 27, 2026, IN DEPARTMENT NINE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG

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**CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED.
PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**